

STATE OF MICHIGAN JUDICIAL CIRCUIT - FAMILY DIVISION COUNTY	ORDER ON APPLICATION TO SET ASIDE ADJUDICATION(S)	CASE NO. PETITION NO. JUDGE
ORI MI-	Court address	Court telephone no.

Police Report No.

CTN/TCN	SID	DOB
Date of Offense(s)	Charge(s)	

 In the matter of _____
 First and last name of juvenile

Instructions: An order may not be entered until receipt of the report of the Michigan State Police. Copies of the order must be sent to the Michigan State Police and the prosecuting official.

THE COURT FINDS:

- ☐ 1. The Michigan State Police has reported to the court required information from the department's records.
- ☐ 2. The applicant has not been adjudicated for more offenses than allowed under MCL 712A.18e(1) and does not have an adult felony conviction.
- ☐ The adjudications arose out of a series of acts that were in a continuous time sequence of 12 hours or less and displayed a single intent and goal.
- ☐ 3. The adjudication(s) is/are not for a felony for which the maximum punishment is life imprisonment.
- ☐ 4. It has been at least one year since termination of jurisdiction.
- ☐ 5. An opportunity has been given to the Attorney General and prosecuting official to contest the application.
- ☐ 6. Circumstances and behavior of the applicant justify setting aside the adjudication(s), and it is consistent with the public welfare.

IT IS ORDERED: (If any item from 1 through 6 is not checked, then item 7 must be checked.)

- ☐ 7. The application is denied.
- ☐ 8. The following adjudication(s) in this case is/are set aside: _____

Under MCL 712A.18e(13), the Michigan State Police shall maintain a **nonpublic record** of the order setting aside one or more adjudications and of the arrest, biometric data, adjudication(s), and disposition in this case. If an adjudication is for a nontraffic offense that was reportable to the Secretary of State in accordance with MCL 257.732(22), the driving record shall not be expunged. If the court or arresting agency maintains a record of the arrest, biometric data, adjudication, or disposition, that record shall be nonpublic and not used for any purpose unless authorized by law.

 Judge signature and date

Under MCL 769.16a the clerk of the court shall advise the Michigan State Police Criminal Justice Information Center of a disposition.

signature/date review zone Approved: SCAO Form JC 105, Rev. 4/21 MCL 712A.18e, MCR 3.925(F) Page 1 of 1	Distribute form to: Court State Police Arresting agency Prosecuting official Defendant Attorney General
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